

Patent Prosecution and Ex Parte Proceedings at the Intellectual Property Office of Singapore

by **Tony Yeo, Yvonne Tang, Lim Siau Wen**, Drew & Napier LLC

Practice notes | [Law stated as of 01-May-2023](#) | Singapore

A Practice Note on the key aspects of patent application filing, prosecution, and related ex parte proceedings at the Intellectual Property Office of Singapore (IPOS). This Note provides an overview of the Singapore patent application filing and examination process. It also addresses strategic considerations for the patent applicant.

Innovative multinational companies typically seek to protect their inventions and obtain freedom to operate globally. Depending on their global manufacturing and supply chain footprint, customer location, and competitive threat outside of their home country, these companies may encounter both patent protection and freedom to operate issues in countries with robust economies, such as Singapore. However, patent application filing and examination procedures in the [Intellectual Property Office of Singapore](#) (IPOS) can be challenging, especially for parties based outside of Singapore.

Although parties typically retain local Singapore patent counsel to address patent issues in Singapore, even with expert local patent counsel, non-Singapore entities may still find patent application filing and examination procedures at the IPOS confusing, time consuming, and expensive. This may make it especially hard to properly evaluate the value of Singapore patent protection, address the intricacies of Singapore patent practice, and ensure robust patent protection in Singapore.

This Note addresses patent practice at the IPOS and addresses important considerations for counsel for the patentee, including key strategic factors, timing issues, and explanation of IPOS patent procedures.

Patent Registration at the IPOS

The only type of patent protection available through the IPOS is invention patent protection. There is no utility model protection in Singapore, and design rights are separately termed and protected as “registered designs” under the Registered Designs Act 2000.

For an invention to be patentable, it must be novel, involve an inventive step, and be capable of industrial application (section 13, Patents Act). Since claims directed to a method of treatment of the human or animal body by surgery or therapy, or of diagnosis practised on the human or animal body are not capable of industrial application in Singapore, they are not permitted (section 16, Patents Act).

However, claims directed to computer-implemented inventions may be patentable if it is established that the computer (or other technical features), as defined in the claims, is integral to the invention for the actual contribution to comprise the computer (or technical features). For example, claims relating to a computer-implemented business method would be considered an invention if the various technical features (for example, servers, databases, or user devices) interact with the steps of the business method:

- To a material extent.
- In a manner that addresses a specific problem.

If the technical features recited in the claim are no more than the workings of a standard operating system, particularly the

use of a generic computer or computer system to perform a pure business method, this interaction would not be considered material, and no specific problem would be solved. The actual contribution is likely to be the business method, and the claimed subject matter would not be considered an “invention” by merely including the term “computer-implemented” or a similar generic term in the claims (section 8.6 and 8.7, IPOS Examination Guidelines).

Inventions that may encourage offensive, immoral, or anti-social behaviour will not be published and are not patentable (section 13, Patents Act).

A patent allows an exclusive right to the invention and prevents others from exploiting the invention without permission. Once granted, a patent will be protected for up to 20 years from the date of filing, subject to the payment of renewal fees (section 36, Patents Act). The term of a patent may be extended beyond 20 years by up to five years in some situations, such as the Registrar’s delay during patent prosecution or for certain regulatory delays concerning a claimed pharmaceutical invention (section 36A, Patents Act). However, a patent also publicly discloses all details of the invention, meaning others may exploit the invention on expiry of the patent.

Patent Application Filing Considerations

A patent application may be filed electronically at the IPOS. There is no filing fee discount for filing the application electronically.

When filing the application, the applicant should consider the extent of the filing fees and the documents that must be filed with the application to obtain a filing date (see [Specification](#)).

For direct national applications and divisional applications, filing fee must be paid within one month from the date of submission of Patents Form 1 (an electronic application form for the filing of direct national and divisional applications at the IPOS to be submitted at the time of filing; see rule 19(2), Patents Rules). As for national phase applications, filing fee must be paid by the national phase entry due date (section 86(3) to (4), Patents Act).

The official filing language in Singapore is English. An English translation and a verification of the English translation (VET) are to be submitted for non-English direct national and PCT applications. For non-English direct national applications, the English translation and the VET are to be submitted within two months from the date of the issuance of the notification letter from the Registrar requesting those documents (rule 19(11), Patents Rules). As for non-English PCT applications, the English translation must be submitted at the time of filing while the VET may be submitted within two months from national phase entry due date (section 86(3)(a), Patents Act and rule 86(4), Patents Rules).

The cost for filing a patent application does not depend on the number of claims or number of pages. Excess claims fees (for claims more than 20) will be charged upon filing a request for local substantive search or examination or on payment of the fee for grant.

The effective filing date of a Singapore application is based on the actual date a complete application is filed in the IPOS or an earlier priority date (see [Priority](#)). Claims are not required to obtain a filing date. However, the applicant must submit the claims to the IPOS Registry within either 12 months after:

- The actual filing date of the application, if there is no declared priority date.
- The declared priority date or two months after the actual filing date of the application, whichever expires later where there is a declared priority date.

(Section 17, [Patents Act, 1994, Rev Ed, 2020](#).)

Singapore does have a limited filing grace period to allow the applicant to avoid the prior art effect of certain activities occurring 12 months or less before the application’s effective filing date (see [Grace Period](#)).

An applicant may file a patent application in Singapore through either:

- A direct national application in Singapore (the Domestic Route).
- The Patent Cooperation Treaty (PCT) National Phase Entry route (based on a PCT international application). The deadline for national phase entry in Singapore is 30 months from the earliest declared priority date or the international filing date where no priority has been claimed (sections 85 and 86, Patents Act and rule 86, [Patents Rules, 2007](#)).

Priority

The relevant considerations for priority are as follows:

- The date of filing the application is the priority date of an invention described in the application.
- If an invention is supported by matter disclosed in an earlier relevant application(s), the priority date of that invention is the earliest date of filing the relevant application(s) in which that matter was disclosed.
- The priority date of any matter contained in the application which was also disclosed in the earlier relevant application(s) is the earliest date of filing the relevant application(s) in which that matter was disclosed.

IPOS is not one of the participating IP offices under WIPO Digital Access Service where priority documents and similar documents can be securely exchanged.

(See section 3.85, IPOS Examination Guidelines.)

Grace Period

A limited filing grace period exists in Singapore so that certain disclosures are disregarded as prior art. This grace period applies to disclosures:

- Occurring later than the beginning of the period of 12 months immediately preceding the patent application filing date.
- Resulted from:
 - certain breaches of confidence;
 - displays at certain international exhibitions; or
 - the inventor's description at a "learned society" where the main object is promotion of learning or science.

(Sections 14(4)(a) to (e), Patents Act.)

The disclosure must be made within the period of 12 months before the date of filing the application in Singapore. For direct national applications, the "date of filing" refers to the actual date of filing the patent application in Singapore (and not the earliest claimed priority date, if any). For PCT national phase applications, the "date of filing" allocated to the national phase application will be the International Date of Filing.

Written Authority

A person resident in Singapore who wishes to first-file or cause to be first-filed outside Singapore an application for a patent for an invention must obtain written authority granted by the Registrar before filing the application abroad (section 34, Patents Act) unless:

- An application for a patent for the same invention has been filed in the Registry not less than two months before the application outside Singapore (section 34, Patents Act).
- No directions have been given under section 33, Patents Act in relation to the application in Singapore, or all directions have been revoked (sections 33 and 34, Patents Act).

Patent Application Requirements

The key components of the Singaporean patent application include:

- The specification (see [Specification](#)).
- The claims (see [Claims](#)).
- Any drawings (see [Drawings](#)).

Specification

A Singapore patent application must contain:

- A request for the grant of a patent.
- A specification containing a description of the invention, which must disclose the invention in a manner which is clear and complete for the invention to be performed by a person skilled in the art.
- A claim or claims and any drawing referred to in the description of any claim, and an abstract. The claim or claims must:
 - define the matter for which the applicant seeks protection;
 - be clear and concise;
 - be supported by the description; and
 - relate to one invention or to a group of inventions that are so linked as to form a single inventive concept.

(Section 25, Patents Act and rules 19, 21 and 22, Patents Rules.)

Claims

Claims must be written in either:

- Two parts with:
 - the first part consisting of a statement indicating those technical features of the invention which are necessary in connection with the definition of the claimed subject-matter and which, in combination, appear to be part of the prior art; and
 - the second part preceded by the words “characterised in that,” “characterised by,” “wherein the improvement comprises,” or other words to the same effect, followed by a statement stating concisely the technical features which, in combination with the features stated in the first part, define the matter for which protection is sought.
- A single statement setting out the features of the invention.

(Section 25, Patents Act and rule 19, Patents Rules.)

Claims must not rely, in respect of the technical features of the invention, on references to the description or drawings, unless the reference is necessary for the understanding of the claim, or enhances the clarity or conciseness of the claim (section 25, Patents Act and rule 19, Patents Rules).

Claims can either be independent (not referring to any other claim) or dependent (depending on one or more independent claims or one or more dependent claims). Multiple dependent claims are permissible in Singapore (sections 2.45 and 2.46, [IPOS Examination Guidelines](#)).

For more information on claims and claim scope in Singapore, see [Practice Note, Scope of Patent Protection \(Singapore\): Claim Construction](#).

Drawings

Drawings must be executed in black, white, or grayscale (no colour). They must not contain any textual matters. Instead, the features should be denoted by reference signs mentioned in the description or claims (section 2.2.16, [IPOS Patents Formalities Manual](#)).

Right to Invention

The inventor or joint inventors of an invention have a right to be noted in any patent granted for the invention, and also have a right to be noted, if possible, in any published application for a patent for the invention (section 24, Patents Act).

The right to the patent belongs primarily to the inventor or inventors. However, it can also belong to any person who is entitled to the patent by virtue of any rule of law or any enforceable agreement entered into with the inventor at the time of the making of the invention. For example, it may belong to the employer if the invention has been developed in the course of work (section 49, Patents Act) or to the successor or successors in title of the inventor(s) (section 19, Patents Act).
Appointing an Advocate and Solicitor or Registered Patent Agent

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The applicant may appoint an advocate and solicitor or registered patent agent in Singapore to act on their behalf for the purposes of appearing before the Registrar at any proceedings before the Registrar, or for any other matter under the Patents Act or Patents Rules or any treaty to which Singapore is a party (sections 93, Patents Act and Rule 90, Patents Rules).

Patent Prosecution at the IPOS

Publication of Application

Where a patent application has been accorded a filing date, it is published in the Patents Journal after 18 months from the effective filing date (section 27, Patents Act and rule 29, Patents Rules). The Patent Journal may be obtained from [IPOS Patent Journal](#).

Preliminary Examination

A preliminary examination for compliance with all formal requirements is conducted on a patent application when it is filed. If all formal requirements have been complied with, the Registrar notifies the applicant (section 28, Patents Act).

Search and Examination

The applicant can then file a request in the prescribed form for one of the following:

- A search report within 13 months from the effective filing date, followed by an examination report within 36 months from the effective filing date (section 29, Patents Act, and rules 38 and 43, Patents Rules).

- An examination report (or search and examination report) within 36 months from the effective filing date (section 29, Patents Act, and rule 43, Patents Rules).

There is no general requirement for an applicant to disclose relevant prior art to the patent office. However, certain search and examination options require the submission of the final international search results of the application or the final search results of a Corresponding Application, and a copy of each of the documents referred to in the final international search results or final search results.

After issuance of the search or examination report, the Patent Registry will issue either:

- A notice of eligibility to proceed to the grant of a patent (section 29A, Patents Act). The applicant can file a request for grant of the patent with the prescribed form and fees within two months from the date of issue of the notice (section 30, Patents Act and rule 47, Patents Rules). A patent will then be granted by the Registrar by issuing to the patent proprietor a certificate of grant and publishing a notice of grant in the Patents Journal (section 35, Patents Act).
- A notice of intention to refuse the application, based on one or more objections disclosed in the search or examination report (section 29A, Patents Act). The applicant can file a request for a review of the examination report within two months from the date of issue of the notice with the prescribed form, with written submissions or amendments to overcome the one or more unresolved objections (section 29B, Patents Act and rule 46A, Patents Rules). An examination review report will be issued. If there is one or more unresolved objection, the Registrar will issue a notice of refusal of the application. The application is deemed refused two months from the date of the notice of refusal. If there is no unresolved objection, a notice of eligibility to proceed to the grant of a patent is issued and the applicant can file a request for grant of the patent with the prescribed form and fees within two months from the date of issue of the notice.

Depending on the complexity of an invention, it may take between two to four years for a patent to be granted. To accelerate the grants of patent applications, IPOS launched the SG Patent Fast Track programme on 1 May 2020. Patent applications in all technology fields, which are first-filed in Singapore, may be placed under this programme, where a patent may be granted in six months. The programme was expanded on 1 September 2020 to include related trade mark and registered design applications. The programme was renamed as SG IP FAST and will run until 30 April 2024 (see [Registry of Patents, Circular No. 3/2022, Extension of SG IP Fast Track](#)).

Third-Party Observations

Where a patent application has been published, and before the issuance of the search or examination report, a third party may make observations in writing to the Registrar on whether the invention is a patentable invention, stating reasons for the observations (section 32, Patents Act). As the Examiner only considers third-party observations based on the documents submitted by the third party, the reasoning should include accurate features that correspond with the claims of the application and, where applicable, be supported by documentary evidence. Observations received after the establishment of the search or examination report will be placed on record, but will not be forwarded to the Examiner (sections 3.11 to 3.19, IPOS Examination Guidelines). As Third-Party Observations have only been formally introduced on 1 October 2021, there are no statistics on the effectiveness of these third-party observations yet.

Amendments

No application amendment may be made if it results in the application disclosing any matter extending beyond that disclosed in the application as filed (section 84, Patents Act).

The applicant may file voluntary amendments to the description, claim drawings, and abstract at any time before filing the request for a search report, an examination report, a search and examination report, or a review of an examination report or a search and examination report. In addition, voluntary amendments can be filed as part of the response to a written opinion issued during the search or examination phase, and at the same time as filing the request for a review of an examination report or a search and examination report (rule 49, Patents Rules). Two or more written opinions may be issued by the

examiner, depending on whether there are any unresolved objections and whether there will be sufficient time for the applicant to respond and for the issuance of the search or examination report.

Divisional Applications

A divisional application may be filed in respect of any part of the matter contained in the earlier application, at a time before the payment of the fee for grant of the earlier application, or before the earlier application is refused, withdrawn, treated as, or taken to be withdrawn, or treated as abandoned, or as having been abandoned. The divisional application will be accorded the same date of filing as the earlier application (section 26(11), Patents Act and rule 27, Patents Rules).

Post-Grant Amendments

The Registrar may, on an application made by the proprietor of a patent, allow the specification of the patent to be amended subject to conditions, if any, the Registrar thinks fit (section 38(1), Patents Act).

Assessment by the Registrar

The Registrar's power to allow post-grant amendments is limited by section 84(4) of the Patents Act, which precludes amendments that result in the specification disclosing additional matter or extend the protection conferred by the patent.

The Registrar will also assess post-grant amendments based on whether:

- Relevant matters are sufficiently disclosed.
- There was any unreasonable delay in seeking amendments. The particular circumstances of each case will be considered, including the length of the delay and whether the proprietor can provide a reasonable explanation for the delay. A period need not be long to be considered an undue delay (*Warner-Lambert Company LLC v Novartis (Singapore) Pte Ltd* [2017] SGCA 45 (*Warner-Lambert*) at paragraphs 42 to 43). Constructive knowledge of a patent's potential invalidity and the need to amend the patent is sufficient "to start the clock running" (*Warner-Lambert* at paragraphs 44 to 48)).
- The patentee has gained an unfair advantage by delaying amendments which are known to be needed.

([Registry of Patents, Circular No. 1/2016, Updated Guidelines on the Assessment of Patent Post-Grant Amendments](#) (Registry of Patents, Circular No. 1/2016).)

Procedure

Rule 52 of the Patents Rules sets out the post-grant amendment procedure.

The patentee may file an application to the Registrar for permission to amend the specification using [Patents Form 17](#) (rule 52(1), Patents Rules). In addition to stating the proposed amendments, the application must set out fully the reasons for the amendments, including the circumstances leading to the amendments and any evidence in support (Registry of Patents, Circular No. 1/2016).

If the Registrar is satisfied that the application may be allowed, the application and the reasons for the proposed amendments will be advertised through publication in the Patents Journal (rule 52(1A), Patents Rules). Any person may oppose the application within two months from the date of the advertisement by filing a notice of opposition to the Registrar on [Patents Form 58](#) (rule 52(2), Patents Rules). The notice must be supported by a statement setting out fully the facts on which the opponent relies and the relief which they seek (rule 52(3), Patents Rules). The patentee may, within two months after the date on which they are served with copies of the notice of opposition and the statement, file a counterstatement on [Form HC6](#), setting out fully the grounds on which the opposition is resisted and serve a copy on the opponent (rules 52(4) and 52(5),

Patents Rules). In determining whether the opposed amendments are allowable, the Registrar may cause the proposed amendments to be examined by an Examiner (rule 52(7), Patents Rules).

If no opposition is filed or the opposition filed is not accompanied by the required supporting statement and the Registrar is satisfied with the reasons for the proposed amendments, the Registrar may grant permission for the post-grant amendments to be made (rule 52(9), Patents Rules). The patentee must, if the Registrar requires, file a new specification as amended (rule 52(8), Patents Rules).

Strategic Considerations

Given the findings in *Warner-Lambert* on undue delay (see [Assessment by the Registrar](#)), it is important for the patentee to:

- Proactively evaluate the merits and strength of their Singapore patents.
- Consider prior art found in other jurisdictions as soon as they come to the patentee's knowledge (such as in the process of prosecuting or litigating foreign counterparts).
- Apply promptly for post-grant amendments.

This activity should also be undertaken to address potential invalidity issues before licensing any Singapore patents.

Patentees must also be mindful that where an amendment of the specification of a patent has been allowed, the court must not, in proceedings for an infringement of the patent committed before the decision to allow the amendment, award any damages, make an order for an account of profits, or grant any other relief (including an injunction), unless the court is satisfied that the specification of the patent as published was framed in good faith and with reasonable skill and knowledge (section 69(4), Patents Act). Similarly, where it finds that a patent is only partially valid, the court must not grant relief by way of damages, costs, or expenses, except where the claimant proves that the specification for the patent was framed in good faith and with reasonable skill and knowledge (section 70(2), Patents Act). If so, the court may grant relief in respect of that part of the patent which is valid and infringed, subject to the court's discretion as to costs or expenses and as to the date from which damages should be calculated.

Post-Grant Re-Examinations

Any person may, at any time after a patent is granted, file a request for the Registrar to conduct a re-examination of the specification of a patent. However, post-grant re-examinations are ex parte. A person does not become a party to any proceedings before the Registrar only by filing a request for re-examination. Only the patentee is a party to post-grant reexaminations (section 38A(15), Patents Act).

Grounds for Re-Examination

Re-examination may be conducted on several grounds, including:

- The invention is not a patentable invention.
- The specification does not disclose the invention clearly and completely for it to be performed by a person skilled in the art.
- The matter disclosed in the specification extends beyond that disclosed in:
 - the application for the patent, as filed; or
 - where the patent was granted on a new application filed under section 20(3), section 47(4), or section 116(6) of the Patents Act (Cap. 221, 1995 Rev Ed), or in accordance with section 26(11) of the current Patents Act, the earlier

application made under the Patents Act, the application made under the United Kingdom Patents Act 1977, or the application under the European Patent Convention designating the United Kingdom filed at the European Patent Office, from which the filing date and the right of priority has been derived, as filed.

(Section 38A(1), Patents Act.)

Re-examination addressing the extension of the subject matter arising under:

- Section 20(3) of the Patents Act (1995 Rev Ed) relates to situations where patent applications are amended or refused following the referral of questions as to entitlement to or rights in these patents to the Registrar. It provides that in such cases, a new application for a patent may be made for the whole or part of any matter comprised in the earlier application, which would have the same date of filing as the earlier application.
- Section 26(11) of the current Patents Act relates to situations where a patent application is filed, but before the prescribed documents for grant have been filed or the application is refused, withdrawn, or abandoned, a new application is filed by the original applicant or their successor in title in respect of any part of the matter comprised in the earlier application. It provides that in such cases, the new application would have the same date of filing as the earlier application.
- Section 47(4) of the Patents Act (1995 Rev Ed) relates to situations where the Registrar finds that a patent was granted to a person not entitled to be granted that patent, and makes an order for conditional or unconditional revocation of that patent. It provides that in such cases, a new application may be made, which would have the same date of filing as the earlier application.
- Section 116(6) of the Patents Act (1995 Rev Ed), which is a transitional provision, accords a right of priority to a patent application filed within 12 months of a patent application made under the UK Patents Act 1977 or filed at the European Patent Office designating the UK, provided that this earlier application is filed before 23 February 1995, and is pending on that date.

Additional grounds for re-examination are:

- An amendment has been made to the specification of the patent under section 38(1) (which grants the Registrar the general power to amend a patent specification after grant), section 81 (which grants the Registrar the power to revoke patents), or section 83 of the Patents Act (which grants the Registrar the power to amend a patent specification in infringement or revocation proceedings where patent validity is put in issue) which:
 - results in the specification disclosing any additional matter; or
 - extends the protection conferred by the patent.
- An amendment has been made to the specification of the application for the patent under section 31 of the Patents Act (which gives the applicant a right to make such amendments), which results in the specification disclosing any matter extending beyond that disclosed in the application as filed.
- A correction has been made to the specification of the patent or of the application for the patent under section 107 of the Patents Act (which grants the Registrar the power to make such corrections), which should not have been allowed.
- The patent is one of two or more patents for the same invention with the same priority date and filed by the same party or the party's successor in title.

(Section 38A(1), Patents Act.)

The Registrar must not grant a request for re-examination if the Registrar is of the view that the request is frivolous, vexatious, or an abuse of process (section 38A(4), Patents Act). No request for re-examination may be filed where there are

any proceedings pending before the court or the Registrar, in which the validity of the patent may be put in issue (section 38A(5), Patents Act). Generally, patent validity is most commonly put in issue in revocation proceedings or by way of defence in infringement proceedings.

See also Practice Note, Patent Revocation Proceedings at the Intellectual Property Office of Singapore.

Post-Grant Amendments Procedure

A request for the Registrar to conduct a re-examination after grant must be made on [Patents Form 36](#) and be accompanied by:

- Payment of the official fees (SGD900, based on the [First Schedule](#) to the Patents Rules).
- A statement:
 - identifying each ground under section 38A(1) of the Patents Act on which the request is made;
 - explaining how the ground or grounds are satisfied; and
 - including any document that the requestor considers to be relevant for the purposes of the re-examination.

(Section 38A(2), Patents Act and rule 52A(1), Patents Rules.)

The statement should identify the claims relating to each ground and state the reasons why a particular ground has been established for each of the claims identified in full. The requestor may cite case law and should identify the relevant parts of prior art documents relied on. The requestor must establish and state the date that the prior art documents were made available to the public ([Examination Guidelines for Patent Applications at IPOS \(June 2022\)](#)) (IPOS Examination Guidelines), paragraphs 11.9 and 11.10). If supporting documents are not in English, translations should be provided together with a verification of the translation (rule 52A(2), Patents Rules).

The request for re-examination may rely on one or more prior art documents that were considered by the Examiner during the course of examination of the patent application, but only if the prior art documents are presented in a new light or in a different way from how they were considered during examination, in view of a material new argument or interpretation of the prior art documents presented during the request for re-examination. Supporting documents are not limited to prior art documents, for example, a document which provides evidence that the priority claims are not valid may be submitted to show that the invention is not patentable in view of other prior art documents (IPOS Examination Guidelines, paragraphs 11.11 and 11.12).

If the Registrar grants the request for re-examination, the request along with the statement and supporting documents will be forwarded to an Examiner for re-examination (Rule 52A(4), Patents Rules). If the Examiner considers that any of the grounds specified in the request or, based on the requestor's support documents, any other ground mentioned in section 38(1) of the Patents Act is made out, the Examiner must issue a written opinion to the patentee to that effect, which the Registrar must send to the patentee (section 38A(8), Patents Act).

Within two months after the date on which the Registrar sends the patentee a copy of the Examiner's written opinion, the patentee may request an interview with the Examiner, which the Registrar must grant (rule 52A(5), Patents Rules). The request should be accompanied by an agenda of the items that the patentee wishes to discuss with the Examiner during the interview. If one of the agenda items includes a proposed amendment to the patent specification, the amendment must be provided in the interview request (IPOS Examination Guidelines, paragraphs 11.30 and 11.31).

Within three months after the date on which the Registrar sends the patentee a copy of the Examiner's written opinion, the patentee must file a response to the Examiner's written opinion using [Patents Form 13A](#) containing either:

- Written submissions on the opinion.
- An application to amend the specification of the patent.

Where the patentee wishes to do both, they must do both simultaneously (section 38A(9), Patents Act and rule 52A(7), Patents Rules).

The proposed amendments must be assessed in accordance with the statutory limitations and criteria in relation to post-grant amendments. Proposed amendments will be advertised by the Registrar and may be subject to opposition within two months from the date of the advertisement.

There is only one opportunity for the patentee to respond to the written opinion. If the proprietor fails to respond within the stipulated period, the written opinion is treated as the re-examination report (rule 52A(9), Patents Rules).

After the patentee has responded to the written opinion, the Examiner will prepare the re-examination report, considering the patentee's written submissions and proposed amendments. Where opposition statements have been filed in respect of the proposed amendments, the Examiner will also review these statements in determining the allowability of the proposed amendment (IPOS Examination Guidelines, paragraph 11.24).

If the patentee responds and the proposed amendments would resolve any objection, the Examiner must state so in the re-examination report and specify in the report the objection that would be so resolved (rule 52A(10), Patents Rules).

If the re-examination report contains one or more unresolved objections, the Registrar must make an order revoking the patent, specifically either:

- An order for the unconditional revocation of the patent.
- Where one of the grounds mentioned in section 38A(1) of the Patents Act has been established, but only invalidates the patent to a limited extent, an order that the patent should be revoked unless the specification is amended under section 83 of the Patents Act to the satisfaction of the Registrar (see [Grounds for Re-Examination](#)).

(Sections 38A(11) and 38A(12), Patents Act.)

Where a conditional revocation is ordered, the proprietor will have a final opportunity to amend the specification under section 83 of the Patents Act within a time limit specified by the Registrar to prevent the full revocation of the patent, which is assessed in accordance with the statutory limitations and criteria in relation to post-grant amendments. Generally, the proprietor may amend the specification by limiting the claims of the patent to those which have been deemed valid in the re-examination report (see IPOS Examination Guidelines, paragraph 11.35). Failure to amend the specifications to the satisfaction of the Registrar would result in the full revocation of the patent.

A decision of the Registrar to revoke a patent takes effect from the date of the grant of the patent (section 38A(14), Patents Act).

If on re-examination the Registrar makes an order for revocation, the patentee may appeal to the General Division of the High Court (section 90(1), Patents Act).

Strategic Considerations

For third parties seeking to revoke a patent, an alternative to applying for re-examination is to institute revocation proceedings before the court or the Registrar (or by way of a defence and counterclaim in response to an infringement claim, see Patent Revocation Proceedings at IPOS). While re-examination will be significantly quicker and less costly, a third party requesting re-examination generally plays no further role after submission of the request. Revocation proceedings, which are inter partes, will generally involve pleadings, evidence (often including expert evidence and cross-examination), and legal submissions filed by both the applicant for revocation and the patentee. This will proceed to a hearing on the merits before the Registrar or the court. The proceedings are adversarial, which generally allows the contested issues to be more fully considered.

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